

Multiple Choice

1. **Answer:** D

Options: A) French Revolution; B) American War of Independence; C) Roman Law; D) Greek Thinking

Note: The idea of 'natural law' first appeared in Greek thinking as philosophers like Aristotle and Plato proposed that certain laws and moral principles are inherent in nature and accessible through human reason, laying the foundational concepts for later legal and ethical theories.

2. **Answer:** A

Options: A) Doctrine of substituted security; B) Doctrine of due process; C) Doctrine of bias; D) Doctrine of reasonableness

Note: The Doctrine of substituted security is not associated with Natural Law thinking because it pertains to economic and property law principles rather than the moral and ethical foundations that characterize Natural Law theory.

3. **Answer:** B

Options: A) He argues that an unequal society is inevitable.; B) He claims that by giving priority to the needs of the poor, we can increase equality.; C) He asserts that we are each responsible for our poverty.; D) He rejects the idea of equality altogether.

Note: Parfit argues that prioritizing the needs of the poor can lead to a more equitable distribution of resources, ultimately enhancing overall equality rather than merely striving for equal outcomes.

4. **Answer:** D

Options: A) Gray; B) Holland; C) Hart; D) Austin

Note: Austin is recognized for defining jurisprudence as the philosophy of positive law, emphasizing the importance of laws enacted by governing bodies rather than moral or natural laws.

5. **Answer:** C

Options: A) There is no distinction between the two forms of legal reasoning.; B) Judges are appointed to interpret the law, not to make it.; C) It is misleading to pigeon-hole judges in this way.; D) Judicial reasoning is always formal.

Note: The correct answer highlights that categorizing judges into rigid styles of legal reasoning oversimplifies their decision-making processes and fails to account for the nuanced and dynamic nature of judicial interpretation in constitutional law.

True / False

6. **Answer:** True

Options: A) True; B) False

Note: Civil and political rights are considered first generation rights because they primarily focus on the protection of individual liberties and the role of the state in ensuring these rights, which were the initial focus of human rights discourse and legal frameworks.

7. **Answer:** False

Options: A) True; B) False

Note: The Natural Law School emphasizes moral principles and inherent rights as the foundation of justice, rather than prioritizing market efficiency, which is more aligned with economic theories such as law and economics.

8. **Answer:** True

Options: A) True; B) False

Note: Catharine MacKinnon's argument posits that without addressing the underlying power dynamics and systemic inequalities that perpetuate women's subordination, political pressure alone is insufficient to achieve true equality for women.

9. **Answer:** False

Options: A) True; B) False

Note: The statement is false because law is deeply influenced by the cultural, social, and historical context in which it is developed and enforced, reflecting the values and norms of the society it governs rather than being solely a product of sovereign intent.

10. **Answer:** True

Options: A) True; B) False

Note: Article 103 of the UN Charter states that in the event of a conflict between obligations under the Charter and obligations under any other international agreement, the former prevails; however, jus cogens norms, being peremptory principles of international law, cannot be overridden by any treaty obligations, including those under the UN Charter.

Long Form Response

11. **Answer:** The relationship between customary law and treaty provisions is significant, as treaties can play a crucial role in shaping and recognizing customary law. Firstly, treaties may codify existing customary law by formally recognizing and articulating its principles, thereby providing a clear legal framework. Secondly, treaties can 'crystallise' customary law, which occurs when consistent state practice and a belief in legal obligation (opinio juris) are solidified through treaty commitments, enhancing their legitimacy. Lastly, treaties can lead to the emergence of new customary law by establishing norms that, over time, gain acceptance and become binding on states through

consistent practice. Consequently, treaties serve not only as instruments of international law but also as catalysts for the evolution of customary law.

Note: correct because it highlights how treaties can both codify existing customary law and crystallize it by reinforcing state practice and the belief in legal obligation, thus influencing the development and recognition of customary law.

12. **Answer:** In international law, 'de facto' organs of the State refer to individuals or entities that, while not officially recognized as state organs, operate under the direction or control of the State and perform functions that are attributable to it. These entities may include private individuals, groups, or organizations that act on behalf of the State in a manner that reflects state policy or directives. The key implication of this concept is that the State can be held responsible for the actions of these de facto organs, as their conduct is considered an extension of the State's own actions. This attribution of responsibility underscores the importance of ensuring that all entities executing state functions adhere to international legal standards, thereby reinforcing accountability in state conduct. Ultimately, the recognition of de facto organs enhances the understanding of state responsibility in international law, particularly in situations where state authority may be exercised indirectly.

Note: correct because it accurately identifies 'de facto' organs of the State as non-official entities that act under state control and perform functions that can be attributed to the State, thus establishing grounds for state responsibility in international law.